

केन्द्रीय सूचना आयोग
Central Information Commission
बाबा गंगनाथ मार्ग, मुनिरका
Baba Gangnath Marg, Munirka
नई दिल्ली, New Delhi – 110067

द्वितीय अपील संख्या / Second Appeal No. **CIC/MHOME/A/2024/634921.**

Shri. Samir Raina.

... अपीलकर्ता / Appellant

VERSUS/बनाम

PIO,
Ministry of Home Affairs.

...प्रतिवादीगण / Respondent

Date of Hearing : 19.08.2025

Date of Decision : 19.08.2025

Chief Information Commissioner : Shri Heeralal Samariya

Relevant facts emerging from appeal:

RTI application filed on : 22.04.2024

PIO replied on : 21.05.2024

First Appeal filed on : 08.06.2024

First Appellate Order on : 11.06.2024

2ndAppeal/complaint received on : 14.08.2024

Information sought and background of the case:

The Appellant filed an RTI application dated 22.04.2024 seeking information on following points:-

"In continuation to earlier RTI application No: MHOME/R/E/22/03219 dated 28/08/2022 and decisions thereof, following information may kindly made available to me for filing PIL and appeal to Honourable President of India. It is again reiterated that case falls under Protection of Life and Personal Liberty and is covered under Article 21 of the Constitution of India.

Information Sought is as follows:

1. A copy of complete Detailed Project Report on the bases of which the Indian Cybercrime Coordination Centre 14C scheme was approved by Government of India on 05th October 2018."

The CPIO, Director vide letter dated 21.05.2024 replied as under:-

"I am to refer to your request for Information under RTI Act 2005, vide letter dated 22.04.2024 and received in the office of this CPIO on 22.04.2024 and to inform that 'Police' and 'Public Order' are State subjects as per the Seventh Schedule of the Constitution of India and States/UTs are primarily responsible for prevention, detection and investigation of such crime through their law Enforcement Agencies (LEAs).

2. The Ministry of Home Affairs, Government of India has set up the Indian Cybercrime Coordination Centre (14C) to deal with all type of Cybercrime in a coordinated and comprehensive manner in the country in the year 2018.

3. The Ministry of Home Affairs has also launched www.cybercrime.gov.in the National Cybercrime Reporting Portal (NCRP) which allows 24X7 reporting of all types of Cybercrime, with special focus on Cybercrime against women and children.

4. The Citizen Financial Cyber Fraud Reporting and Management System has been launched for immediate reporting of financial cyber frauds and preventing siphoning of funds by the cyber criminals in near real time basis. National Toll- free Helpline number '1930' has been operationalized to provide citizen assistance in lodging online cyber complaints."

Dissatisfied with the response received from the CPIO, the Appellant filed a First Appeal dated 08.06.2024. The FAA, CEO (I4C) vide order dated 11.06.2024 replied as under:-

"2. The CPIO. Director (CIS-II) replied to the RTI applicant vide reply dated 08.06.2024 that The Ministry of Home Affairs. Government of India has set up the Indian Cybercrime Coordination Centre (I4C) to deal with all type of Cybercrime in a coordinated and comprehensive manner in the country in the year 2018.

3. The Ministry of Home Affairs has also launched www.cybercrime.gov.in the National Cybercrime Reporting Portal (NCRP) which allows 24X7 reporting of all types of Cybercrime, with special focus on Cybercrime against women and children.

4. The Citizen Financial Cyber Fraud Reporting and Management System has been launched for immediate reporting of financial cyber frauds and preventing siphoning of funds by the cyber criminals in near real time basis. National Toll- free Helpline number 1930 has been operationalized to provide citizen assistance in lodging online cyber complaints.

5. However, the appellant has preferred First Appeal dated 08.06.2024 and "Refused access to Information requested" mentioned in ground for appeal.

6. The Undersigned, being the Appellate Authority in the matter, after having checked the available information record and relevant provisions of the RTI Act, has seen that the CPIO has already disposed of the RTI application of the Appellant and the reply of the CPIO was appropriate and in order."

Aggrieved and dissatisfied, the Appellant approached the Commission with the instant Second Appeal.

Facts emerging in Course of Hearing:

Appellant: Present

Respondent: Vishal Dhiman, Deputy Director (PIO) is also participating in the hearing.

The Appellant submits that certified copy of complete Detailed Project Report on the bases of which the Indian Cybercrime Coordination Centre (I4C) scheme was approved by Government of India on 05th October 2018 has not been provided.

The Respondent sought time to submit a revised reply. The commission grants time.

Further the Respondent submitted a revised reply dated august 2025 stating,

Information sought by appellant in his RTI application bearing registration number MHOME/R/E/24/01971 dated 22.04.2025 cannot be shared under section 8(1)(a), (g), (h) and 8(2) of RTI Act, 2005.

Decision:

Keeping in view the facts of the case, material on record and the submissions made during hearing, the Commission is of the view that an appropriate response as per the provisions of the RTI Act, 2005 has been provided by the Respondent.

Further the Respondent is directed to send the copy of the revised reply dated August 2025, free of cost via speed post within 30 days from the date of receipt of this order and accordingly compliance report to this effect be duly sent to the Commission within a week thereafter.

No further adjudication is warranted in this case, under the RTI Act.

The matter stands disposed of.

Heeralal Samariya (हीरालाल सामरिया)
Chief Information Commissioner (मुख्य सूचना आयुक्त)

Authenticated true copy
(अभिप्रमाणित सत्यापित प्रति)

S. K. Chitkara (एस. के. चिटकारा)
Dy. Registrar (उप-पंजीयक)
011-26186535



Recomendation(s) to PA under section 25(5) of the RTI Act, 2005:-

Nil